

**Form of an Application to the High Court under
Section 130A of the Customs Act, 1962**

In the High Court of Judicature at _____

In the matter of Appeal No. (Name of the appellant) _____

Application No. _____ of _____ 19 _____
(To be filled in by the Office)

_____ Applicant

Vs.

_____ Respondent

- (1) State/Union territory and the Commissionerate from which the application is filed :
- (2) Number of the appeal which gives rise to the application :
- (3) Address to which notices may be sent to the applicant :
- (4) Address to which notices may be sent to the respondent :
- (5) The appeal noted above was decided by the _____
_____ Bench of the Appellate Tribunal on :
- (6) The notice of the order under Section 129B of the Customs Act, 1962 was served on the applicant on :
- (7) The facts which are admitted and/or found by the Appellate Tribunal and which are necessary for drawing up a statement of the case, are stated in the enclosure for ready reference :
- (8) The following questions of law arise out of the order of the Appellate Tribunal :
 1. _____
 2. _____
 3. _____ etc.
- (9) The applicant, therefore, requires under sub-section (1) of Section 130A of the Customs Act, 1962 that High Court directs the Appellate Tribunal to refer to the High Court the question(s) of law referred to in paragraph 8 above :
- (10) The documents or copies thereof as specified below (the translation in English of the documents, where necessary) is annexed with the statement of the case.

*Signature of the authorised
representative, if any.*

*Signature of the
applicant.*

Verification

I, _____ the applicant, do hereby declare that what is stated above is true to the best of my information and belief.

Verified today, the _____ day of _____ 19 _____.

*Signature of the authorised
representative, if any.*

*Signature of the
applicant.*

- Notes :**
- (1) The application and the form of verification shall, if the application is made by any person, other than the Commissioner of Customs, be signed by the applicant in accordance with the provisions of Rule 3 of the Customs (Appeal) Rules, 1982.
 - (2) The application shall be filed in quadruplicate.
 - (3) The fee of Rs. 200/- required to be paid under the provisions of the Act shall be through a crossed bank draft drawn in favour of the Registrar of the High Court on a branch of any nationalised bank located at the place where the High Court is situated and the demand draft shall be attached to the form of application.]